

Hearing, objections and post-order instructions

The court decides eligibility and relief. Do not fill judicial findings, prosecutor decisions, hearing dates or court/service certifications.

The court sets a hearing and gives prosecutor notice under R.C.2953.35; follow the actual notice.

Stop for legal assistance: Any firearm conviction that is not the obsolete notification offence. This is not a general firearm expungement.

Stop for legal assistance: Any question about which former version of ORC 2923.16 or ORC 2923.12 applied.

Stop for legal assistance: Any incident that produced more than one charge with different dispositions, which triggers ORC 2953.61.

Stop for legal assistance: Pending criminal proceedings or open warrants.

Stop for legal assistance: Prosecutor objection, and any victim objection where applicable.

Stop for legal assistance: Choosing between sealing and expungement, which is a legal judgment with different waits and different exclusions.

Stop for legal assistance: Immigration exposure.

This is not a general firearm expungement. It is tied to specific old statutory versions and authorization language, and any other firearm conviction is outside it.

Ohio has both sealing and expungement and they are different remedies. Neither remedy means that the record is completely gone from everywhere.

"Eligible offender" no longer exists. SB 288 removed that definition from ORC 2953.31 and with it the numeric cap on how many convictions a person could seal. Do not use the former

Hearing, objections and post-order instructions

numeric conviction cap to decide whether you can apply; the current exclusions and other requirements still apply.

"Sentence" does not include payment of court costs, so unpaid court costs do not delay eligibility.

If relief is granted, retain the signed order and follow its agency distribution directions. The BCI request is a blank post-order transmission companion for the authorized sender, not an application for relief. Do not sign, date, check record-system boxes or certify a judicial order before those events occur.

Do not import R.C.2953.32 limited-retention language as though it were a rule of R.C.2953.35. The exact signed order controls.